

3. Relation to subject-matter, and nature of trust must be clear.—But with regard to letters and loose acknowledg-

equitable interest which the court will recognize. *Lawson v. Lawson*, 117 Ill. 98; *Jones v. Lloyd*, 117 Ill. 597. Defendant purchasing property with money of plaintiff held it in trust for him. *Arnold v. Robins*, 40 N. J. Eq. 723. A party getting title to land wrongfully, whether in good faith or not, is a trustee for the equitable owner. *Lakin v. Mining Co.* 25 Fed. Rep. 337. A trust is created when it "is fully expressed and clearly defined upon the face of the instrument creating it." *Loring v. Palmer*, 118 U. S. 321; *Mich. Sts.* § 5573. A. buys land in his own name, and B. afterwards pays for it, but no trust results. *Williams v. San Saba Co.* 59 Tex. 442. A trust is frequently inferred from the facts in the case. *Chadwick v. Chadwick*, 59 Mich. 87. There is no trust relation between an insurance company or its officers and its policy holders to support an equitable action. *Hencken v. U. S. Life Ins. Co.* 11 Daly (N. Y.) 282. An agreement without consideration to execute a trust in future is not binding, but where such a trust has been actually undertaken equity will enforce it. *Switzer v. Skiles*, 3 Gilm. 529; 44 Am. Dec. 723. Husband and wife making a conveyance, the proceeds to pay his debts, raises a trust. *Barnes v. Trafton*, 80 Va. 524. A. held shares of stock in trust for B. A. sold them to C., who held them subject to the trust. *Perkins v. Perkins*, 134 Mass. 441. Where personal is absolutely conveyed, the declarations of the transferer and assent of transferee may create a trust. *Chace v. Chapin*, 130 Mass. 128. Wife, giving in trust for her insolvent husband, remainder over, created a trust, barring his creditors. *Cummings v. Corey*, 58 Mich. 494. It is held that a voluntary trust without consideration is good. *Van Cott v. Prentice*, 104 N. Y. 45; but see *Lane v. Ewing*, 31 Mo. 75. Conveyance to wife, requiring her to divide property equally among the daughters, creates no trust. *Hopkins v. Glunt*, 111 Pa. St. 287. A trust was declared and an assignment ordered where property, claimed as his own by the trustee, was received in trusts, and so acknowledged before and since. *Hance v. Frome*, 39 N. J. Eq. 324. No trust arises where trust funds have been used in the improvement of land by the owner. *Cross's App.* 97 Pa. St. 471. To A. to permit B. to receive support "in such manner, however, that the same shall not be liable to his debts" raises a trust. *Hooberry v. Harding*, 10 Lea (Tenn.) 392; *Waddingham v. Loker*, 44 Mo. 132. A trust is not created by a death-bed declaration, or an oral agreement, that grantee shall hold land, conveyed by an absolute deed, in trust. *Titcomb v. Morrill*, 10 Allen, 15; *Bartlett v. Bartlett*, 14 Gray, 277. The creation of a trust depends on the settlor's intention, and a grant clearly expressing that the grantee is not to have the benefit, but holds for use of another, will make him a trustee holding title for the beneficial owner. *Mory v. Michael*, 18 Md. 227. Where the intention does not appear, no form of words will create a trust. *Richardson v. Inglesby*, 13 Rich. Eq. 59. The mere calling a deed, mentioned in the recitals of other deeds, a deed of trust does not make it so. *Hurst v. McNeil*, 1 Wash. 70. Express terms not necessary and may be proved by any proper written evidence disclosing facts creating a fiduciary relation. *Pratt v. Ayer*, 3 Chand. (Wis.) 265; *Starr v. Starr*, 1 Ohio, 321; *Pinney v. Fellows*, 15 Vt. 525. The owner of land gave a bond to secure the same to another, who entered thereon and received the rents, thereby making sufficient declaration that obligor held the estate in trust for the obligee. *Orleans v. Chatham*, 2 Pick. 29. A trust in the executor where a conveyance was made to A. by mortgage, conditioned to become void on payment